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18/123,172	03/17/2023	Yu Fang	SONA-0010-U01-C01-C04	1335

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EXAMINER	
ALGIBHAH, HAMZA N	

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2456	

NOTIFICATION DATE	DELIVERY MODE
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Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 18/123,172	Applicant(s) Fang et al.	
	Examiner HAMZA N ALGIBHAH	Art Unit 2456	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 03/17/2023.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-26 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-4,7-8,10 and 14-26 is/are rejected.

8) ☑ Claim(s) 5-6,9 and 11-13 is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 03/17/2023 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

Detailed Action

1. ***Claims 1-26*** are pending.

2. ***Claims* 1-4, 7-8, 10 and 14-26 *are rejected.***

3. ***Claims 5-6, 9 and 11-13 are objected.***

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

4. ***Claim***(s) **1-4, 7-8, 10 and 14-26** is/are rejected under 35 U.S.C. 103 as being unpatentable over Beiderbeck et al (PCT International Application No. PCT/EP2018/060970, published Nov. 22, 2018 wherein the Pub. No.: US 2020/0164882 A1 is used as an English translation for the International Application) in view of Duri et al (Pub. No.: US 2004/0267410 A1).

As per claim 1, Beiderbeck discloses an apparatus, comprising:

- a policy processing circuit structured to determine a property request value in response to the at least one requested vehicle property (Beiderbeck, abstract, paragraph 0023, wherein there is provision for the overtaking information to be produced on the basis of training data, with at least one of the following properties that characterize the driver. The training data thus have at least one of the properties. As such, the property can be available for example as a speed of travel relative to the mandatory speed, as a safety distance when pulling back in after an effected overtaking maneuver or as a distance from the target vehicle when pulling out

before an effected overtaking maneuver. Thus, the overtaking information including at least one of the property of the speed of travel, the safety distance and the distance from the target vehicle can be the property request values as claimed}; and

- a parameter acquisition circuit structured to interpret at least one vehicle parameter value in response to the property request value {Beiderbeck, abstract, paragraph 0028-0029, 0031, there is preferably provision for a current operating parameter of the motor vehicle to be captured and for the operating parameter and the overtaking information to be used to recognize an intention of the driver to overtake, and for the control signal to be selected on the basis of the recognized intention to overtake. The operating parameter can be concordant with the properties of the training data, for example. As such, for example the operating parameter allows a determined distance behavior or a determined acceleration behavior to be captured that has a level of similarity with the overtaking information. To this end, the operating parameter can be compared with the overtaking information and then for example categorized as similar or dissimilar on the basis of the comparison. If the operating parameter is assessed as similar to the overtaking information, this then allows the inference that the driver intends to overtake, for example. On the basis of the recognized intention to overtake, for example the control signal allows advice to be output to the driver indicating that the overtaking maneuver would be possible with less risk at a specific distance or else that the present overtaking opportunity should be taken because there is no overtaking opportunity at all in the next journey section}; ***and***

- ***a parameter provisioning circuit structured to selectively transmit the at least one vehicle parameter value*** (Beiderbeck, paragraph 0037, wherein there is preferably provision for the overtaking information adapted during operation of the motor vehicle to be transferred to at least one motor-vehicle-external device. The motor-vehicle-external device can be in the form

of an external server or else multiple external servers, for example. The adapted overtaking information can thus be transferred to what is known as a computer cloud, that is to say to a distributed computer network, for example. The device can be available in stationary, distributed or central fashion in this case. The transfer of the adapted overtaking information to the device allows it to be sent in turn to further motor vehicles). Beiderbeck does not explicitly disclose ***a policy acquisition circuit structured to interpret a data collection policy comprising at least one requested vehicle property; and that the transmitting is in response to the data collection policy***. However, Duri discloses ***a policy acquisition circuit structured to interpret a data collection policy comprising at least one requested vehicle property; and that the transmitting is in response to the data collection policy*** {Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared).

Therefore, it would have been obvious to one ordinary skill in the art before the effective filing date of the invention to modify Beiderbeck in view of Duri such that a requestor verification circuit is used as claimed because this would have provided a way to improve the security of the system by ensuring that the data will only sent to authorized entities.

As pre claim 2, claim 1 is incorporated and Duri discloses **wherein the data collection policy further comprises a policy type, and wherein the parameter acquisition circuit is further structured to interpret the at least one vehicle parameter value in response to the policy type** (Duri, paragraph 0036, wherein he type of information received by ASP 150 can be limited based upon the privacy policy stored in the TSP 140. For example, ASP 150 can receive location information and vehicle type information, but no other identifying information);

As pre claim 3, claim 2 is incorporated and Duri discloses **wherein the policy type comprises a persistent policy, and wherein the parameter acquisition circuit is further structured to persistently evaluate the data collection policy for data collection operations** (Duri, paragraph 0012, 0028 wherein the privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared. The privacy policy is considered to be a persistent policy since it is persistently applied);

As pre claim 4, claim 2 is incorporated and Duri discloses **wherein the policy type comprises an on demand policy, and wherein the parameter acquisition circuit is further structured to discontinue evaluating the data collection policy for data collection operations in response to fulfilling a data collection cycle of the data collection policy** (Duri, paragraph 0013, 0028 wherein receiving a request for information from a service provider prior to any comparing step and determining a privacy policy associated with the vehicle and the requesting service

provider. The privacy policy is considered to be a on demand policy since it is applied in response on receiving the request);

As pre claim 7, claim 2 is incorporated and Duri discloses **wherein the policy type comprises at least one type selected from the types consisting of: a downloaded policy; a factory policy; or a built-in policy** (Duri, paragraph 0013, 0028 wherein receiving a request for information from a service provider prior to any comparing step and determining a privacy policy associated with the vehicle and the requesting service provider. The privacy policy is considered to be one of a downloaded policy; a factory policy; or a built-in policy);

As pre claim 8, claim 7 is incorporated and Duri discloses **wherein the policy acquisition circuit is further structured to implement the downloaded policy if present** (Duri, paragraph 0013, 0028 wherein receiving a request for information from a service provider prior to any comparing step and determining a privacy policy associated with the vehicle and the requesting service provider. The privacy policy is considered to be a downloaded policy);

As pre claim 10, claim 7 is incorporated and Duri discloses **wherein the policy acquisition circuit is further structured to implement a compatible portion of the factory policy if present** (Duri, paragraph 0013, 0028 wherein receiving a request for information from a service provider prior to any comparing step and determining a privacy policy associated with the vehicle and the requesting service provider. The privacy policy is considered to be a factory policy);

As pre claim 14, claim 1 is incorporated and Duri discloses **wherein the data collection policy further comprises a transmission description value corresponding to the at least one requested vehicle property** (Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared; wherein the value that is used to determine what data to transmit can be the transmission description value as claimed);

As pre claim 15, claim 14 is incorporated and Duri discloses **wherein the transmission description value comprises at least one value selected from the values consisting of: a transmission priority value; a data storage description; a network zone utilization description; or an access point name (APN) value** (Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared; wherein the value that is used to determine what data to transmit can be the transmission priority value as claimed);

As pre claim 16, claim 1 is incorporated and Beiderbeck discloses **wherein the data collection policy further comprises a data configuration value, and wherein the policy processing circuit is further structured to determine the property request value in response to the data configuration value** (Beiderbeck, paragraph 0029, 0031, wherein there is preferably provision for the overtaking information to be produced on the basis of a current weather condition and/or a current time of day and/or a current day of the week. Preferably, the overtaking information can also be produced on the basis of a current traffic density and/or a current road category. The current weather condition can involve for example prescribing whether it is raining, whether it is snowing, what the outside temperatures are, and then again what the overtaking tendency of the driver is on the basis of the weather condition);

As pre claim 17, claim 1 is incorporated and Beiderbeck discloses **wherein the data collection policy further comprises a triggered data description** (Beiderbeck, paragraph 0024, 0028, wherein the property provided for can for example also be a pulling-in angle, an acceleration profile, a utilization level of the power reserve of the motor vehicle, a distance behavior in regard to the target vehicle before the overtaking maneuver or at the beginning of the overtaking maneuver, an acceleration behavior, a shifting behavior, a braking behavior, an approach speed behavior in regard to the target vehicle);

As pre claim 18, claim 1 is incorporated and Beiderbeck discloses **wherein the data collection policy further comprises a policy priority value** (Beiderbeck, paragraph 0024, 0028, wherein the property provided for can for example also be a pulling-in angle, an acceleration profile, a utilization level of the power reserve of the motor vehicle, a distance

behavior in regard to the target vehicle before the overtaking maneuver or at the beginning of the overtaking maneuver, an acceleration behavior, a shifting behavior, a braking behavior, an approach speed behavior in regard to the target vehicle);

As pre claim 19, claim 18 is incorporated and Duri discloses **wherein the policy priority value comprises at least one priority value selected from the values consisting of: a data collection priority value; a data storage priority value; or a transmission priority value** (Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared; wherein the value that is used to determine what data to transmit can be the transmission priority value as claimed);

As pre claim 20, claim 1 is incorporated and Duri discloses **wherein the policy acquisition circuit is further structured to determine a policy capability value, and to selectively enable the data collection policy in response to the policy capability value** (Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service

providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared; wherein the value that is used to determine what data to transmit can be the transmission capability value as claimed);

As pre claim 21, claim 1 is incorporated and Duri discloses **wherein the policy acquisition circuit is further structured to determine a policy authorization value, and to selectively enable the data collection policy in response to the policy authorization value** (Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared; wherein the value that is used to determine what data to transmit can be the transmission authorization value as claimed);

As pre claim 22, claim 1 is incorporated and Duri discloses **wherein the data collection policy comprises a policy life cycle description, and wherein the policy acquisition circuit is further structured to selectively enable the data collection policy in response to the policy life cycle description** (Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and

comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared);

As pre claim 23, claim 22 is incorporated and Duri discloses wherein the policy life cycle description comprises at least one description selected from the descriptions consisting of: a policy start time; a policy end time; a triggered data description comprising a collection criteria value for the data collection policy; an amount of data to be captured under the data collection policy; a number of data collection events to be captured under the data collection policy; or a number of trigger events wherein data is to be captured under the data collection policy (Duri, paragraph 0012, 0028 wherein the method can include receiving the telematics data for the vehicle, wherein the telematics data dynamically changes over time, and comparing the telematics data with a privacy policy associated with the vehicle. The privacy policy can specify conditions for selectively releasing items of the telematics data to one or more service providers. In particular, the present invention allows one to define a privacy policy that can specify which items of telematics information received from a vehicle are to be shared with service providers and the conditions under which those items are to be shared);

As pre claim 24, claim 22 is incorporated and Duri discloses wherein the policy life cycle description comprises: a past data recovery triggered in response to an event; or an indicator of a buffer for storing historical data (Duri, paragraph 0080, wherein the privacy policy further can include rules indicating which sets of data can be considered for release. For example, a rule

such as "consider only information from the past 30 days for sharing" can be implemented. This rule, while temporal in nature, defines the data set that first can be considered for release);

As pre claim 25, claim 24 is incorporated and Duri discloses wherein the event is at least one of: an accident; or a component failure (Duri, paragraph 0080, wherein the privacy policy further can include rules indicating which sets of data can be considered for release. For example, a rule such as "consider only information from the past 30 days for sharing" can be implemented. This rule, while temporal in nature, defines the data set that first can be considered for release);

As pre claim 26, claim 24 is incorporated and Duri discloses wherein the buffer is a rolling buffer and the past data recovery retrieves the historical data stored in the rolling buffer (Duri, paragraph 0080, wherein the privacy policy further can include rules indicating which sets of data can be considered for release. For example, a rule such as "consider only information from the past 30 days for sharing" can be implemented. This rule, while temporal in nature, defines the data set that first can be considered for release);

Allowable Subject Matter

5. Claims 5-6, 9 and 11-13 are objected to as being dependent upon a rejected base claim, but would be allowable if rewritten in independent form including all of the limitations of the base claim and any intervening claims.

Conclusion

Any inquiry concerning this communication or earlier communications from the examiner should be directed to HAMZA N ALGIBHAH whose telephone number is (571)270-7212. The examiner can normally be reached on 7:30 am - 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Umar Cheema can be reached on (571) 270-3037. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/HAMZA N ALGIBHAH/
Primary Examiner, Art Unit 2456